



U.S. Department
of Transportation

Research and
Special Programs
Administration

400 Seventh Street, S.W.
Washington, D.C. 20590

NOV 15 1994

DOT-E 8077
(THIRD REVISION)

1. DOW Corning Corporation, Midland, Michigan, is hereby granted an exemption from those provisions of this Department's Hazardous Materials Regulations specified in paragraph 5 below to offer packages prescribed herein of a Class 8 and Class 3 liquid for transportation in commerce subject to the limitations and special requirements specified herein. This exemption authorizes the use of non- DOT specification steel drums, and provides no relief from any regulation other than as specifically stated. Reference to 49 CFR sections in this exemption are to regulations in effect on September 30, 1991.

2. BASIS. This exemption is based on Dow Corning Corporation's application dated July 12, 1994, submitted in accordance with 49 CFR 107.105.

3. HAZARDOUS MATERIALS (Descriptor and class). Silicon tetrachloride, or Trichlorosilane classed as Division 4.3 (UN1295).

4. PROPER SHIPPING NAME (49 CFR 172.101). Silicon tetrachloride, and Trichlorosilane.

5. REGULATION AFFECTED. 49 CFR 173.119(m), 173.136(a)(3) and 173.247(a)(7).

6. MODES OF TRANSPORTATION AUTHORIZED. Motor vehicle and rail freight.

7. SAFETY CONTROL MEASURES.

a. Packaging prescribed is non-DOT specification steel drum with rated capacity not exceeding 55 gallons, manufactured in general compliance with Dependable Welding Service drawing dated September 11, 1967, on file with the Office of Hazardous Materials Exemptions and Approvals (OHMEA), and change to the drawing or drum description in the November 7, 1978, letter must be approved by the OHMEA.

8. SPECIAL PROVISIONS.

a. Persons who receive the packages covered by this exemption may reoffer them for transportation provided no modifications or changes are made to packages, all terms of this exemption are complied with and a current copy of this exemption is maintained at each facility from which such reoffering occurs.

b. Shippers using the packaging covered by this exemption must comply with all provisions of this exemption, and all other applicable requirements contained in 49 CFR Parts 171-180.

c. No new construction of the packaging identified in paragraph 7 of this exemption is authorized after September 30, 1994. As the holder of the exemption, you may request a renewal to continue the use of the packaging manufactured prior to September 30, 1994. However, the exemption will not carry an expiration date subsequent to September 30, 1996 since use of the packaging is prohibited after that date. This is consistent with the transitional provisions of 49 CFR Section 171.14 and the implementation of the new packaging requirements adopted under Docket HM-181.

9. COMPLIANCE. Failure by a person to comply with any of the following may result in suspension or revocation of this exemption and penalties prescribed by the Federal hazardous materials transportation laws:

- ° All terms and conditions prescribed in this exemption and the Hazardous Materials Regulations, 49 CFR Parts 171-180.
- ° Registration required by 49 CFR 107.601 et seq., when applicable.

No person may use or apply this exemption, including display of its number, when the exemption has expired or is otherwise no longer in effect unless a regulation has been amended making the exemption no longer necessary.

10. REPORTING REQUIREMENTS. The carrier is required to report any incident involving loss of packaging contents or packaging failure to the Associate Administrator for Hazardous Materials Safety (AAHMS) as soon as practicable. (49 CFR 171.15 and 171.16 apply to any activity undertaken under the authority of this exemption.) In addition, the holder of this exemption must inform the AAHMS, in writing, of any incidents involving the package and shipments made under the terms of this exemption.

11. EXPIRATION DATE. July 31, 1996.

Issued at Washington, DC:

NOV 15 1994

Alan I. Roberts
Alan I. Roberts
Associate Administrator
for Hazardous Materials Safety

(DATE)

Address all inquiries to: Associate Administrator for Hazardous
Materials Safety, Research and Special Programs Administration,
Department of Transportation, Washington, DC 20590
Attention: DHM-31.

The original of this exemption is on file at the above office.
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